MADRAS HIGH COURT (PRINCIPAL SEAT, CHENNAI)

APPELLATE JURISDICTION · FULL BENCH / REFEREE SINGLE BENCH

HCP No. 1021 of 2023 **CNR: TNCH010010212023**

Date of Pronouncement: 14 July, 2023 *Citation: 2023:MHC:3125*

CORAM: Hon'ble C.V. Karthikeyan, J. (Third Referee Judge)

Petitioner / Appellant: Megala (w/o V. Senthil Balaji)

- VERSUS -

Respondent / State: Directorate of Enforcement & Others

SUBJECT: HABEAS CORPUS & PMLA CUSTODIAL REMAND **AUTHORITY: Good Law (Affirmed by Supreme Court in 2023)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

An order of remand passed by a competent court of jurisdiction cannot be assailed as illegal detention through a writ of habeas corpus. The Enforcement Directorate has the power to take an accused into custody under Section 167 of the Code of Criminal Procedure.

STATUTORY PROVISIONS INTERPRETED: Section 19 PMLA, Section 167 CrPC, Article 226

FINAL DISPOSITION: HABEAS CORPUS PETITION HELD NOT MAINTAINABLE

EXECUTIVE SUMMARY:

Deciding referee ruling holding that ED is entitled to seek custodial interrogation of an arrested person under Section 167 CrPC, and a Habeas Corpus petition is not maintainable once a competent judicial remand order is passed.

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